



**PLANNING &
DEVELOPMENT**

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: PUDC-26-119 / North Range Business Park, 15th Filing – Outside User Agreement
Date: June 8, 2026

Background:

The item for consideration is an Outside User Agreement. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- | | |
|-----------------------------|---------------|
| • Introduction and Referral | June 8, 2026 |
| • Public Services Committee | June 15, 2026 |
| • Consideration | June 22, 2026 |

Public Comment

As of the publication of this memo (June 3, 2026), Staff has not received any inquiries or comments from the public on this project. The project page on the website has received 60 views and no comments.

Attachments:

1. Resolution
2. Staff Report

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION APPROVING WATER AND SANITARY SEWER SERVICES BY OUTSIDE USER AGREEMENT FOR KING RANCH COMPANY, LP, FOR LOT 1, BLOCK 1, NORTH RANGE BUSINESS PARK, 15TH FILING (LOCATED NORTH OF I-80, WEST OF ROUNDTOP ROAD)."

WHEREAS, King Ranch Company, LP is owner of properties in Laramie County, Wyoming, located at Lot 1, Block 1, North Range Business Park, 15th Filing;

WHEREAS, King Ranch Company, LP ("the Applicant"), submitted an application to the City of Cheyenne and the Board of Public Utilities ("BOPU") for water and sanitary sewer services outside of the corporate limits of the City of Cheyenne for the above-referenced properties;

WHEREAS, pursuant to Resolution No. 3577, BOPU was instructed to present to the Governing Body for its review any application for the provision of water and/or sanitary sewer services to any individual or entity outside the corporate limits of the City of Cheyenne;

WHEREAS, BOPU has reviewed the application submitted by the Applicant, and BOPU and the Applicant will approve and execute applicable Outside User Agreement(s) upon approval by the Governing Body pursuant to Resolution No. 3577; and

WHEREAS, the Governing Body has reviewed the application for water and sanitary sewer services submitted by the Applicant and has determined that approval is in the best interest of the City of Cheyenne.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the application submitted by the Applicant to BOPU for water and sanitary sewer services outside of the corporate limits of the City of Cheyenne for the property more specifically described above, is hereby approved; and

BE IT FURTHER RESOLVED, that BOPU and the Applicant are authorized to approve and execute Outside User Agreement(s), subject to the condition(s) imposed by the Governing Body.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____,
2026.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk

CITY OF
CHEYENNE
PLANNING &
DEVELOPMENT

CITY OF CHEYENNE GOVERNING BODY
JUNE 8, 2026
STAFF REPORT

FILE: PUDC-25-119: North Range Business Park 15th Filing – Outside User Agreement

REQUEST: A request to provide water and/or sewer services to property outside city limits.

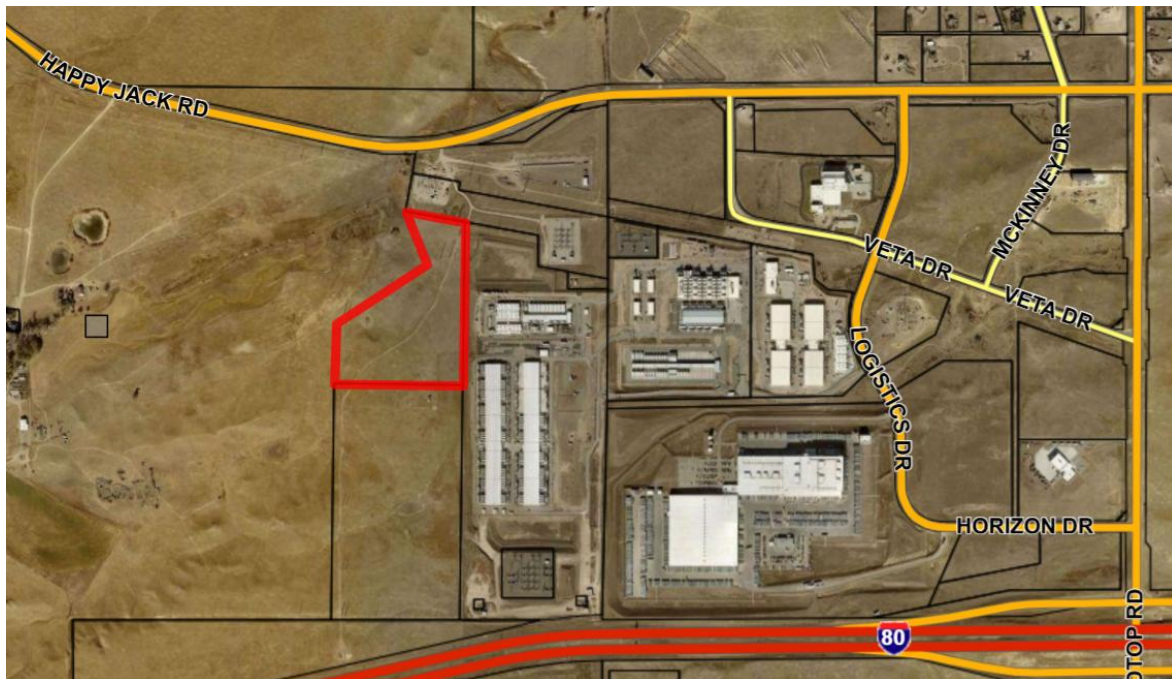
LOCATION: Between Happy Jack Road and I-80, west of Roundtop Road

APPLICANT: Microsoft

AGENT: AVI PC

OWNER: King Ranch L P

PREPARED BY: Seth Lloyd, AICP, Senior Planner



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- PlanCheyenne
- Resolution 3577

BACKGROUND:

This applicant is requesting connection BOPU water services for property outside City limits. The land is currently being developed as a staging area for construction equipment for data centers. The adjacent properties are data centers within City limits and those properties have full access to water and sewer. The subject property is looking to extend services from the adjacent property with City limits to this construction yard. The applicant has applied to annex the subject property (OUDC-26-124) – the Outside User Agreement allows access to services while the property goes through the annexation process.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Mixed-Use Employment	County LU Land Use	Vacant – developing with construction staging area
North	Mixed-Use Employment, Urban Transition Residential	County LU Land Use, AG Agricultural, LI Light Industrial	Vacant, Utility Station, Data Center
South	Mixed-Use Employment	BP Business Park	Vacant
East	Mixed-Use Employment	BP Business Park	Data Center
West	Mixed-Use Employment	County LU Land Use	Vacant/Agriculture

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

The request for an outside user agreement has no formal review criteria; however, the following elements should be considered when reviewing outside user agreements:

- BOPU capacity
- Needed infrastructure improvements
- Fiscal cost/benefits to the City and the BOPU
- Population served
- Considerations in the effect on future annexation(s), including proximity to current and future City services.
- Conformance with the Comprehensive Plan

The requested outside user agreement has minimal impact on BOPU's system capacity. The proposed use of the property is for multiple construction offices that would be serviced by a Microsoft tap.

This property is currently undergoing the annexation process through the City processes (PUDC-26-124) once the county plat has been recorded. By Wyoming State Statute, a petition for annexation cannot be

withdrawn. The property is surrounded by City limits on the northeast, east, and south sides. This agreement will allow access to BOPU water services until the annexation is finalized. The annexation of this land will not create a County pocket as land to the west is unincorporated county land.

Property tax would increase, but the City would not have any income from the property tax at this time. The proposed use is not residential and would not change distribution of funds based on population. The BOPU may charge a higher rate for outside users.

Non-infrastructure City services, such as fire, police, and sanitation could relatively easily be extended to the property. City water is the only utility that is being asked to be extended to this property. It will be done from an existing main on a nearby property.

The Comprehensive Plan designates this area as Mixed-Use Employment – and the proposed use in this location is consistent with that anticipated development pattern.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is discussed above.

STAFF REVIEW:

Through the review process, no comments were received.

CONCLUSION:

Staff is satisfied that the application is acceptable based on the considerations specific to this request and therefore recommends approval of the outside user agreement.

STAFF RECOMMENDATION:

Staff recommends approval of the proposed outside user agreement.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant-submitted proposed site plan